NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH, COURT – II
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, CHENNAI BENCH, HELD ON 07.01.2026 AT 10.30 A.M. THROUGH VIDEO CONFERENCING:

PRESENT: SHRI. JYOTI KUMAR TRIPATHI, HON'BLE MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, HON'BLE MEMBER (TECHNICAL)

APPLICATION NUMBER	**: IA(COMPANIES.ACT)/266(CHE)2025**
PETITION NUMBER	**: C.P.(CAA)/23(CHE)2025**
NAME OF THE APPLICANT	**: Indcon Structurals Pvt Ltd**
NAME OF THE RESPONDENT(S)	**: --**
UNDER SECTION	**: Sec 420 of CA 2013**

ORDER

Present: Ld. Sr. Counsel Mr. Murari for the Applicant.

This is an Application seeking rectification of our order dated 09.12.2025. As there are mistakes apparent from record, the following modification is made to the order dated 09.12.2025 and therefore, the same is rectified as herein below:

"8.2.1. The Income Tax Department to whom the notice was served on 13.05.2025, has filed its report on 11.07.2025 for Petitioner No.2 company and on 03.09.2025 for the Petitioner No.1 Company and has expressed its 'Observations' and 'No Objection' to the Scheme as follows:

> *"2. In addition to the above and without prejudice to the objections in the letter attached, it is submitted that the requirement to send the notice to the concerned department is a procedural requirement and as such does not impact the right of the Department to proceed in accordance with the provisions of the Income Tax Act, 1961. Therefore, it is submitted that this Hon'ble Tribunal, may take the objections on record without prejudice to the rights of the Department to take all appropriate proceedings under the provisions of the Income Tax Act, 1961 to protect the interest of the Government revenue including the right to reopen the assessment. Further it is submitted that by filing of this Memo and the report of the Assessing Officer, the*

Income Tax Department shall not have deemed to waive its rights to undertake all proceedings under the Income Tax Act, 1961.

...

It is prayed that this Hon'ble Tribunal maybe pleased to take the memo and the letter on record and consider the same as the representation of the Income Tax Department as per Section 230 of the Companies Act, 2013 and pass such other order(s) as this Hon'ble Tribunal may think fit in the facts and circumstances of the case."

...

8.2.2. 'it is stated that pursuant to the present Scheme of Arrangement, the liabilities and proceedings if any, in respect of the Real Estate Undertaking, will continue against the Resulting Company, and liabilities and proceedings if any, in respect of the Remaining Undertaking, will continue against the Demerged Company, and therefore the Income Tax Department can proceed with their proceedings if any and approval of this Scheme does not cause any prejudice'.

...

12. ***THIS TRIBUNAL DO FURTHER ORDER***

(i) *that all the properties, rights and interests of the Real Estate Undertaking of the Petitioner No. 1/Demerged Company, shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or deemed to have been transferred to and vested in the Petitioner No.2/Resulting Company in terms of the Scheme.*

(ii) *that all the liabilities, powers, engagements and obligations in respect of the Real Estate Undertaking of the Petitioner No. 1/Demerged Company shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or deemed to have been transferred to and vested in the Petitioner No.2/Resulting Company in terms of the Scheme.*

...

(vi) that all the proceedings now pending by or against the Petitioner No. 1/Demerged Company, in so far as such proceedings pertain to the Real Estate Undertaking, shall be continued by or against the Petitioner No.2/Resulting Company.

(vii) that all the employees/workmen relating to the Real Estate Undertaking of the Petitioner No. 1/Demerged Company, in service as on the date immediately preceding the date on which the Scheme finally takes effect shall become the employees of the Petitioner No.2/Resulting Company without any break or interruption in their service with all the benefits;

(viii) That the Petitioner Companies, shall within thirty days of the date of receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the 1st Petitioner Company registered with him on the file kept by him in relation to 2nd Petitioner Company shall be consolidated accordingly.

(ix) That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary."

Accordingly, **IA(COMPANIES.ACT)/266(CHE)2025 is allowed and disposed of.**

SD/-	**SD/-**
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
Member (Technical)	**Member (Judicial)**

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